

HEADNOTE

“1. On the admissibility of extending an action to include claims from a further patent in suit after the completion of a limitation procedure.

2. The defendants must be granted the same written pleading deadlines to respond substantively to a claim extension as would have been granted had the extension been filed as a separate action, but no more. The (unextended) statement of defence deadline begins to run, in respect of the subject matter of a claim extension, from the date on which the claim extension is admitted.”

COURT
Local Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP 3 611 989 and EP 3 678 321

Method and apparatus for transmitting
wireless local area network information

KEYWORDS

Rule 333

Review by the court

Extension of claims

Further patent in suit

Limitation proceedings

Possibility of severance

Counterclaim period

Rule 333 Preliminary examination of the application

SUMMARY

The Local Division in Munich issued a procedural order in an infringement action. The court addressed the admissibility and procedural consequences of a claim extension, the addition of claims from a further patent in suit, after the completion of a limitation procedure. On the first point, the court held that extending the action to include claims from a further patent in suit after a limitation procedure has been completed is admissible. On the second point, the court clarified the applicable pleading deadlines: the defendants must be granted the same statement of defence deadline as would have applied had the extension been filed as a separate action, but no longer. The (unextended) deadline runs, for the subject matter of the claim extension, from the date on which the claim extension is admitted by the court.